

SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 Solicitation Procedures

(a) This solicitation is issued using the procedures of **FAR Part 12, Acquisition of Commercial Products and Commercial Services**, in conjunction with **FAR Part 15, Contracting by Negotiation**.

(b) The Government intends to utilize a **two-phase advisory down-select process** to evaluate proposals in accordance with the evaluation procedures described in **Section M – Evaluation Factors for Award**.

(c) In Phase I, the Government will evaluate offerors' Production Capability and Past Performance to determine which offerors represent the most highly rated proposals.

(d) After completion of Phase I evaluations, the Government intends to issue advisory down-select notifications identifying the offerors that the Government recommends proceed to Phase II.

(e) The advisory down-select process is intended to reduce proposal preparation burden on offerors and evaluation burden on the Government. However, the Government reserves the right to:

- Continue with all offerors
- Limit participation in Phase II to the most highly rated offerors
- Establish a competitive range
- Conduct discussions if necessary

(f) In Phase II, the Government will evaluate Design and Production Approach and Price.

(g) The Government intends to evaluate proposals and may make award without discussions. Offerors should therefore submit proposals containing their best terms initially.

(h) Proposals submitted in response to this solicitation shall remain valid for 180 calendar days after the proposal submission deadline.

L.2 FAR Provision Incorporated

The provision FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services, applies to this solicitation and is incorporated by reference with the following tailored instructions.

In the event of a conflict between FAR 52.212-1 and the instructions contained in this Section L, the instructions contained in Section L shall govern.

L.3 Proposal Submission Deadline

(a) Phase I proposals shall be submitted no later than:

[TBD]

(b) Proposals shall be submitted electronically to the Government point of contact identified in this solicitation.

(c) After completion of Phase I evaluations, the Government may issue advisory down-select notifications identifying the offerors invited to participate in Phase II.

(d) If the Government elects to proceed to Phase II, Phase II proposal due dates will be provided in the advisory down-select notice or a subsequent solicitation amendment.

(e) Offerors are responsible for ensuring proposals are received by the Government prior to the applicable closing date and time.

(f) Late proposals may be handled in accordance with FAR 52.212-1 and FAR 15.208, as applicable.

L.4 Questions and Requests for Clarification

(a) Questions regarding this solicitation shall be submitted in writing via email to the Contracting Officer and Contract Specialist.

(b) Questions shall be submitted no later than:

[TBD]

(c) Questions received after this date may not be answered.

(d) Responses to questions may be provided through formal solicitation amendment.

L.5 Proposal Organization

Offerors shall organize proposals into the following volumes.

Phase I Proposal

Volume I – Production Capability

The Production Capability volume shall describe the offeror’s shipyard facilities, workforce capacity, and production capability to construct the required vessels.

Volume II – Past Performance

The Past Performance volume shall describe the offeror’s recent and relevant past performance on contracts of similar size, scope, and complexity.

Phase II Proposal (for Offerors selected by the Government)
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Volume III – Design and Production Approach

The Design and Production Approach volume shall describe the offeror’s technical and engineering approach to vessel design, construction, testing, and delivery.

Volume IV – Price Proposal

The Price Proposal shall contain the completed pricing template and any supporting pricing information required by the solicitation.

L.6 Page Limitations

The following page limitations apply:

Volume	Page Limit
Production Capability	20 pages
Past Performance	3 pages
Design and Production Approach	20 pages
Price Proposal	No page limit

The page limits include:

- Text
- Charts

- Graphs
- Tables
- illustrations

The following do not count toward page limitations:

- Cover pages
- Table of contents
- Divider pages
- Resumes (if required)
- Completed pricing templates

Pages exceeding the stated page limits will not be evaluated.

L.7 Proposal Formatting Requirements

Proposals shall comply with the following formatting requirements:

- Page size: 8.5 x 11 inches
- Margins: minimum 1 inch on all sides
- Font: Times New Roman, 12-point minimum
- Spacing: single or greater

These formatting requirements apply to all proposal volumes unless otherwise specified.

The Government may disregard any pages exceeding the page limitations established in this solicitation.

L.8 Volume I – Production Capability

The Production Capability proposal shall address the offeror's ability to perform the work described in **Attachment J-1 – Statement of Work (SOW)**.

The proposal shall demonstrate the offeror's production capability and capacity to successfully construct and deliver the required vessels in accordance with the requirements of the Statement of Work.

Information should include:

- Shipyard facilities and infrastructure
- Fabrication capability and production lines
- Workforce experience and staffing levels

- Production planning and scheduling approach
 - Experience constructing vessels of similar size and complexity
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L.9 Volume II – Past Performance

Offerors shall submit information describing recent and relevant past performance.

Offerors shall provide up to three (3) past performance references for contracts performed within the last five (5) years that are similar in size, scope, and complexity to the requirements of this solicitation. Each reference shall not exceed one (1) page.

For each reference, provide:

- Contract number
- Contracting agency or customer
- Contract value
- Description of work performed
- Period of performance
- Customer point of contact (name, phone, email)

Past Performance Questionnaires (if applicable) may be submitted as attachments and will not count toward the page limitation.

The Government may obtain past performance information from sources including:

- CPARS
 - Other Government databases
 - Sources other than those identified by the offeror.
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L.10 Volume III – Design and Production Approach

The Design and Production Approach proposal shall describe the offeror's proposed approach to vessel design, construction, testing, and delivery in accordance with the requirements of

Attachment J-1 – Statement of Work (SOW).

The proposal shall demonstrate the offeror's technical and engineering approach for successfully designing, constructing, and delivering the required vessels.

Information should include:

- Vessel design maturity
- Engineering approach

- Production methodology
 - Quality assurance and quality control procedures
 - Supply chain management
 - Risk identification and mitigation strategy
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L.11 Volume IV – Price Proposal

Offerors shall submit pricing using **Attachment J-TBD– Price Proposal Template**.

The Price Proposal shall include:

- Completed pricing template
- CLIN pricing consistent with Section B – Schedule
- Identification of subcontractors (if applicable)

Offerors shall not alter the format of the pricing template.

All proposed pricing shall be consistent with the CLIN and SubCLIN structure in Section B.

L.12 Proposal File Naming Convention

Offerors shall label proposal files using the following format:

- Volume I – Production Capability
- Volume II – Past Performance
- Volume III – Design and Production Approach
- Volume IV – Price Proposal

Files shall be clearly labeled and organized to facilitate Government evaluation.

L.13 Government Rights

The Government reserves the right to:

- Reject any or all proposals
- Waive minor informalities or irregularities
- Request proposal clarifications
- Conduct discussions if necessary
- Make award without discussions

Award will be made to the offeror whose proposal represents the best value to the Government, consistent with the evaluation factors identified in Section M – Evaluation Factors for Award.

L.14 Advisory Down-Select Notice and Participation

(a) After evaluation of Phase I proposals, the Government intends to issue advisory down-select notices to offerors.

(b) The advisory down-select notice will inform each offeror whether the Government recommends that the offeror continue participating in Phase II of the competition.

(c) The purpose of the advisory down-select is to:

- Reduce proposal preparation burden on offerors
- Reduce evaluation burden on the Government
- Focus Phase II competition on the most highly rated proposals

(d) The advisory down-select notice does not constitute an exclusion from the competition.

(e) Offerors that receive a notice advising that they are unlikely to be competitive may still elect to continue participating in Phase II unless otherwise notified by the Government.

(f) The Government reserves the right to:

- Allow all offerors to proceed to Phase II
- Limit the number of offerors proceeding to Phase II
- Establish a competitive range pursuant to FAR 15.306(c)
- Request additional proposal information
- Conduct discussions if determined necessary

(g) The Government also reserves the right to make award without discussions.

(h) Nothing in the advisory down-select process shall be interpreted as:

- A commitment to include an offeror in the competitive range
- A commitment to conduct discussions
- A commitment to make award

(i) Offerors are responsible for carefully considering the Government's advisory notice when deciding whether to submit a Phase II proposal.

(End of Section L)